

Sheehan

Steven Greer-Daniel Sheehan Interview

This an interview we're doing in May of 2001 that Steven Greer and the Disclosure Project have permission to use this interview in any means that they deem proper and necessary.

My name is Daniel Sheehan. I am an attorney, admitted to the bar of Washington DC and New York, the southern district of New York. I have practiced for some thirty years now after graduating from Harvard Law School in 1970. I am a 1967 Honors graduate of Harvard College in American Government Studies and International Relations. I was a 1967 Rhodes Scholar nominee from Harvard University in New York. After graduating from Harvard Law School – where I was an editor of the Harvard [??] Harvard Law Review – I went down to the Cahill Gordon firm on Wall Street in New York where I practiced. It's 175 trial lawyers; it's considered to be the number one litigation law firm in the nation. There, I was an associate under Floyd Abrams in the First Amendment Division. We represented NBC News and the New York Times. I was one of the five defense attorneys for the New York Times in New York Times Pentagon Papers case. I went from the Cahill Gordon firm to the law firm of F. Lee Bailey. I was one of the three trial lawyers in F. Lee Bailey's office, along with Lee and Jerry Alch, and was there at the time that our office did the Watergate burglary defense. We represented James McCord. It was our office that persuaded James McCord to write the letter to Judge John Sirrica that actually blew the whistle on the Watergate burglars and the plumbers unit in the White House.

Prior to taking the final degree, I was invited to become Chief Counsel for the United States Jesuit Headquarters in Washington, DC in their National Social Ministry office, which is their public policy office dealing with major policy issues. I served there from 1975 to 1985 under Superior General Pedro Arrupe, the Father General from Rome. And it was during that period of time that these particular events occurred. After having been at the office, the national headquarters for some two years ... I would put it around January ... a little after January of 1977 – I received a telephone call from one Marsha Smith. Marsha Smith was the Director of the Science and Technology Division of the Congressional Research Service of the United States Congressional Library. She asked me to come to meet with her. I went and met with her; had lunch with her at Bullfeathers here in Washington DC, just down the street from the Capitol Building. She informed me in this lunch that she had been contacted by the Science and Technology Committee of the House of Representatives of the United States Congress, and had been informed that the president of the United States, President Jimmy Carter, had contacted the congressional staff at the Science and Technology Committee, and had asked to have a major investigation undertaken by the United States Congress looking into the two particular fact questions. That these two fact questions had arisen as a result of the president having met with the still-in-place Director of Central Intelligence at that time, George Bush Sr. This was in January ... January 21st. Actually the media, I guess, took place on January 22nd of 1977. And President Carter, after his inauguration the previous day, called the Director of Central Intelligence in, and informed him that the president wanted to have access to the classified documents relating to Unidentified Flying Objects, and the potential existence of extraterrestrial intelligence. At that time, the Director of Central Intelligence, George Bush Sr., informed the president that Mr. Bush was not going to release this information to the president. It was very peculiar that he was still locked in place from the previous Republican

administration, because President Carter had nominated Teddy Sorenson to be the new Director of Central Intelligence, and during the course of the hearings ... the Senate Confirmation Hearings ... he had withdrawn ... Sorenson. So therefore, unplanned, the former Republican Director of Central Intelligence, George Bush, was still in place. So he refused to comply with the request of the president. And he said ... George Bush said ... George Bush Sr. said to President Carter, "If you want to have this information, I'm not going to give it to you on my watch. If you want to proceed before having your own DCI put in place, you would have to follow the following procedure. You'd have to go to the United States Congress, to the Science and Technology Committee of the House of Representatives, and ask them to undertake a process by means of which the Congress can get certain documents declassified. They can ask for a declassification process to be undertaken." He said they would do that in conjunction with the Congressional Research Service; that there is a process that this is done by. President Carter, having the high level of desire that he did to get at this particular information ... rather than butt heads with the Republican DCI, decided to go through that process. So the president, in January, contacted the United States House of Representatives Science and Technology Committee, and asked that two specific fact questions be researched, and that whatever documents that could be declassified by the Congress to get access to this information, be provided to the president.

The two questions were: One, what information do we have in the government, in unclassified and classified areas, that speaks to the question of whether or not extraterrestrial intelligence exists. And the second question is whether any percentage of these UFO sightings and reports that have been coming to the government have been investigated and whether there is any evidence indicating that these might represent vehicles from an extraterrestrial civilization that are visiting our planet. These questions were put to the United States Congress, the House of Representatives in January. They passed these over to the Congressional Research Service of the Library of Congress soon thereafter. So it was like ... I think it was like about March or April when I got this telephone call. Because it was warm; the spring was starting, so it was probably in, like, April is my best estimate.

Steven Greer: This other background information you're sharing, how did you learn about that?

DS: From Marsha Smith. Marsha Smith told me that this is what had happened, and she and I were both taken aback. She's a Republican. I was, at that time, a Democrat; a registered Democrat ... and it was interesting. We came from kind of different worlds. Marsha is a very conservative person, and highly technically, scientifically oriented, and I was a practicing trial lawyer; constitutional litigator and a student of social ethics and theology. But we got along very well at the lunches. So she began to share with me what the details were of how this had actually come about. So I went back to Jesuit Headquarters and talked to Fr. William J. Davis, who was the Director of the National Social Ministry office, in the Oregon province of Jesuits. And I asked him whether or not he would consent to co-signing a letter from the National Headquarters in the United States asking for this documentation from the Vatican library. As it turns out, a Jesuit was in charge of the Vatican library. So Fr. Davis found out what his name was, and got his address and details. So we sent a formal letter to this man and asked him if we, at Jesuit Headquarters, could get access to that section of the Vatican library where the information about UFOs and extraterrestrial intelligence

was. And much to our surprise, about a week or two later – almost two weeks later actually – we get this letter back saying no; that we couldn't have access to this. I mean, we were totally flabbergasted. I mean, this was the United States Headquarters for the Jesuit order. I mean we've got ten provinces of Jesuits here in the United States; it's more than any other place in the entire world. And so, you know, this is a pretty influential place. The US Catholic Conference of Bishops were a very major power in the Catholic world, actually. So we were taken aback that this had happened. So we prepared a second letter of much more detail, and explained to them ... explained to the Jesuit director of the Vatican library, who it was who was asking for this, and what had happened, and how the president had met with the director of central intelligence, and was unable to get this from him. And that the president had specifically and officially asked for this information, and if there were certain types of restrictions that the Vatican wanted placed on this information, that we would be willing to go along with that as a condition for being able to get these. We assured them in the letter that I, personally, as general counsel for the Headquarters staff in the National Social Ministry office would personally come to Rome and do the inspection of the documents and I would agree to abide by whatever conditions were set. And we sent this second letter out. And two weeks later we get the answer back – No. The answer is no. You cannot have access to this section of the library.

And so I called Marsha Smith back, and didn't talk to her on the phone. I said, "Let's go to lunch. I'll meet you at the same place." And so we went to Bullfeathers. I went to the lunch, and I said to her, "You know, to everyone's embarrassment, they're saying no. That we can't do this." And she had already explained in detail what they were doing and what the study was that was going on. I was fascinated by the subject that they were looking into. But that was that.

SG: How is it that they thought, of all places, the Vatican ... that they denied access?

DS: Oh no. They did not deny having it. They said specifically that you could not have access to this part of the library. So that was that. I communicated that to Marsha, and I went back to Jesuit Headquarters, and ... About – it may have been a month or six weeks later, I get another call from Marsha. And she asked me to come and meet her at the same place for lunch. So I went there, and we saw down, and she informed me that the SETI Project – the Search for Extraterrestrial Intelligence – from the jet propulsion laboratory in California had just had its budget for the following year cut in half. And the people from the jet propulsion laboratory, some of the top scientists at SETI, had contacted Marsha and had informed her of this. They felt constrained by the Hatch Act, a federal piece of **[Glitch in the tape]** ... while they're still employed bound them not to lobby on behalf of trying to reinstate the rest of their budget. So they contacted Marsha Smith and informed them of the problem that had arisen. So Marsha contacted me and she said that there were a number of former astronauts that were going to be coming into Washington, and were going to be going to visit the congressional offices of key congress people to try to get this money reinstated. And since I was familiar with the lobbying process and had been to lots of offices in the Senate and the House, and I knew how to go about doing that, she asked if I would accompany them to these meetings. And I said, "Let me check with Fr. Davis and with Cy Smith, Fr. Smith, Jim Carroll and Terry Shay," – who were the leadership staff at the Jesuit Headquarters, who were, in effect, my client. Rather than meeting with all ten provincials; I wouldn't have to meet with the

ten Jesuit provincials from around the United States, I could meet with the headquarters staff. And so I did. I went back and checked with them, and they said that I could do this. Actually, William J. Davis said I could do this, and he consulted with them. And they all confirmed that I could do this.

So we went to these meetings. We spent a couple of days going to meet with these various congressmen. We got to meet with the actual congressmen, themselves, on this issue. And within a few weeks, it turns out the rest of the budget was reinstated to SETI. Now there were probably several other things going on that all played into that, you know. Very few things in Washington DC are ever done just because they're the right thing to do. So there were other factors that were going on there. But it turns out that the money was reinstated in the budget. So Marsha called me up and was very happy, and asked me to come and see her at the same place. So we go back to Bullfeathers, and I sat down, and she said that they were extremely happy about this. The full budget had been reinstated. The top fifty scientists at the jet propulsion laboratory on the SETI project were inviting me to come to the JPL and to deliver to them a closed-door seminar on the theological implications of the search for extraterrestrial intelligence. And they wanted to know if I could do that. So I wanted to do it; I was delighted with getting to do it. So I went back and checked with the staff again and got permission to do this. They were getting more and more interested in this as it was developing. They were quite put off too by that not being allowed to see this stuff at the Vatican library. They began to suspect there was something there, you know. And they hadn't really thought that much about this, to be frank with you. They, for a time, they hadn't really thought about that much. So they knew the stuff was there now. So they said, yes, I could do this.

So I go back and I see Marsha Smith again, and I said to her – I said, “Look, if I’m going to get to go out and meet with the top fifty scientists of the jet propulsion laboratory on the SETI project, I would like to, if I could, get access to the material that you’re developing here for the president. So that I’m not stupid. That I’m at least informed of what, at least, we know here” And she said, “Well that could probably be arranged.” And I said, “How would I go about doing this?” She said, “What I’ll do is I’ll make you a special assistant researcher for the Congressional Research Service on this particular project.” And she said, “What is it you’d like to see in order to prepare for this seminar?” It took me all of, maybe one second, to figure the answer. I said, “I want to see the classified portions of Project Blue Book.” And she smiled. She said, “Hmmm. I don’t know if they’ll do that. I don’t know if they’ll declassify that or not. Sometimes they do and sometimes they don’t, you know, when the Congressional Research Service asks them to declassify something. But I’ll ask them to do that.” So I was very pleased and went back to Jesuit Headquarters, and in a week or two again, I get a call from her and go back to see her. And she says, “You know. Lo and behold, they said yes, that you can see this stuff. Or that we can see this stuff. So what I’ll do is ... they’re going to be sending these materials that are classified ...” And she never told me whether they were unclassified, or whether they still remained classified, but I never had to take any security oath or anything. So she let me know that they’re going to be bringing them to the Library of Congress the following Saturday, and that I would be given a brief amount of time to go in and review these. So I said, “Great.” So she let me know where I had to go. And I had to go to the new office building; it was brand new – the Madison Building now on the other side of Independence Avenue from the Library of Congress. And nobody was even in the place. I mean, it was all brand spanking new. There wasn’t a single office set up in it. There was nobody in it; no staff in the back. On Saturday

morning – this would now be probably into May – probably early or mid-May by this time. I know it was ... I remember it was real nice out. It was one of those kind of events that you remember, you know. It was real nice out and getting warm. So I go over on Saturday morning; I go over to the main entrance to the place. I had to kind of look around the place, because there wasn't any people. So I found a guard at the main entrance, and told him who I was and he made a call and said, "Wow. Yes, you're supposed to be allowed in here. So he accompanied me in. He was kind of curious about what was going ... So I go in and I said, "Did they say you're supposed to go to this particular place?" So I go in and I go down stairs into the basement of the Madison building. And said, "You're supposed to go down there to such and such a room." So I kind of waited for him to leave. He was kind of getting read to accompany me down there. I say, "No thank you. That's fine. I'll be able to find this." So he walks away. So I go walking down the hall looking for this room. And I get down to the end of it and turn left and go down there, and at the end of this little hall, there are these two guys. Plain clothes guys; ear plugs, you know; sleeve mics – the whole nine yards. Two guys; plain clothes guys – mid-thirties – one of the guys maybe about thirty-two, thirty-three years old. The other guy about maybe 35 ... and there was another guy sitting at the little table – little desk like – next to him. Plain clothes, but he was a little older – maybe about forty years or so. So they are sitting there, and I come walking up. They're clearly expecting me because they must have been the ones that got the call from the guard. I come walking up and Marsha had told me that I'd have to have positive identification; photo identification and all that and bar card and all that, so I did. So I go over and the guy at the desk asked to see my identification. I had my briefcase with me and stuff. So I take out my identification; I show him my photo ID, I show him my DC bar card. And so he says, you're not going to be allowed to take your briefcase in there. Now I had ... I had taken out a yellow pad and I had it under my arm. And I go walking in there and he says, "You're not going to be allowed to take your briefcase in there; you're not going to be allowed to take any notes, and you're going to get about an hour or so in here." I mean, I was wondering where all these restrictions came from, but I wasn't going to complain. I mean, this was gratis; I'm getting this gratis. So I said, "Okay." So I put my briefcase down, kept the yellow pad with me. I had it just under my arm; I just walk in to the other room. So I go in through the door, and they left the door open at first. And so I was ... I went in and there was a table there and there were like about, maybe, 16 or 20 or so boxes. Little – like shoe boxes. They were about this long, about maybe two feet long and a half foot wide, and about another half foot deep. And they were in this kind of off-light greenish; kind of beigey-greenish color. And they had these little string tabs on the side for connecting them. I didn't know where to start. I thought – well, gee. If I'm only going to get an hour or so like this, you know, I said to myself kind of fast thinking, I said if I start reading documents, you know, I'm not going to get much done here. So I said, what I'm going to do is I'm going to look for photographs; that's what I'll look for. There were actually a couple of other boxes there. They had little film like in them, and a little tiny projector. So the first thing I did was I got one of the films – I put the little film on the projector and clicked it on, and I started seeing some of these photographs. They were actually video of UFO stuff; some that I'd seen elsewhere. So I started thinking, well this isn't the classified stuff; I've seen some of this stuff. So I put that stuff back and I went looking through the boxes and tried to figure out what part was classified. Because that's what I wanted to see. So I took one of the boxes aside and then the other one was a secret one – it didn't say it on the outside. I undid the little strings, I opened it up, and there was a little – like paper in there that said Top Secret. So I was going, hmm, this is what I'm looking for here. So I

take the little paper off and I take out one of the canisters, and I go over – and there was this little gray-like tin microfiche machine; like a little hand crank. And here we are looking at some of the [??] technology in the galaxy, and here was this little hand-crank thing. So I take out – I start looking – I'm going through them really rapidly because I'm thinking documents, documents, I can get caught forever in documents. I've got to look for these photographs. So the first one was all documents. I put it back and I looked for the second one. The second one – the first half was all documents, and then I hit it then. There were some photographs there. So I hit this photograph and, there it was. I mean, there wasn't any doubt about what this was. This was a crashed UFO and the photograph showed that it hit and it was like a winter scene; there was snow on the ground. Black and white photograph of this – you could see this big trench mark like it had come through this field and this UFO had gotten stuck; like it had hit into the side of this, like, embankment. It had kind of nosed into it, so you couldn't really quite see the bottom part. You couldn't see what was under there. But you could see the big trail ...

At 24 minutes and 23 seconds, the sound cut off completely. The tape continued for about seven seconds until the sound picked up again with:

... with one of them standing at one end of it and the other one standing at the other end of it with a tape measure. They weren't smiling, they weren't kind of ecstatic. They were just kind of methodical. There was a dome – like a dome like on the top ...

Again, at 24 minutes and 43 seconds, the sound cut off. The tape continued for six seconds then picked up again ...

... They weren't smiling, they weren't kind of ecstatic. They were just kind of methodical. They were just standing there measuring it. And from the photograph of them measuring it, I could see on the vehicle that there was this place on the vehicle ... There was a dome – like a dome on the top; bulbous part of this thing, and over on the side of it – it was kind of tipped like this; it was kind of tipped a little bit toward me. So I could see it. And there was like little marks; it looked like little engraving marks on the side of it. And I could see it, and I went "That's what I'm looking for. I want to see what this says," you know. So I cranked it up. I go through like two more pictures. And the next picture was these Air Force guys taking pictures of it. So they had pictures of them taking pictures of it. It was like two or three guys taking photographs of this thing. And there was – one of the guys had like a movie camera – like a big camera taking movies of this thing. Then I go to the next one and the next one, and there it was. There was a close-up photograph – a close-up black and white photograph of this section of the craft that had these symbols. And I looked at it, and I turned around, and I'm trying to see whether – and the door was like almost closed now. And so I'm say, you know, am I going to dare do this. And I go, "Yeah, I'm not going to pass this one up." So what I did is I open up the yellow pad; I flop it open so all the paper is up, to the cardboard backing on the thing. And what I did is I cranked down the focus on the microfiche thing so that the size of the projection was exactly the size of the back of the cardboard of the yellow pad. And I took out my pen and I traced it. I traced each of these symbols. The entire long string of symbols that were there. And I was absolutely fastidious about it ... to make sure they were exact ... I traced them off the image. And I closed the thing back up and I cranked the film out of the thing and I

close it back and put it in the little casing and put it back in and put the little Top Secret document thing back on top of it and tied the little string back up and I lifted it up and put it right back in the exact same spot where it was. And I said, "I'm getting out of here. I've seen it." Now, I thought about it afterwards as the years have gone by, and I said, you know, I should have at least stayed there for the full time, you know, and tried to find some documentation that told what this was, and I feel stupid as a lawyer and a professional investigator, but anyway that's what I did.

SG: Let's go back. Can you describe the craft ...

DS: The shape of this thing – it was like a classic – it was like a classic. It had a – it was like two saucers, like, stuck together, you know. The top of it was like this bulbous thing; it was actually kind of smooth – it just kind of went up – it was this kind of bulbous rise in the middle of it. And since it was tipped a little bit toward me too, you could see it was almost like circular on the top; this bulbous thing – I could see – it hadn't gone so far into the bank where the bulbous part was into the mud. It was just the front end of it that was stuck in the mud. But it was lifted up a little bit and tipped toward me a little bit. So I could see the size of it. Now the guys that were there – since there were guys in some of the photographs with it, I couldn't see the tape measure; I couldn't read the tape measure. But they had this big long tape measure stretched out on this thing. But you know, it looked like it was about – man, it looked like it was about maybe thirty feet – maybe thirty feet across, you know. And it wasn't huge, it wasn't like gigundous. It was like about maybe thirty – thirty-five feet or so. And it didn't have any windows. I didn't see any kind of windows in it. And the – I couldn't see the edge of it, because it was tipped a little bit toward me so that the place where kind of the two saucers would come together, I couldn't really see that line. It was tipped a little out of my line of vision. And I looked – the photographs I saw were all kind of taken from the same direction, strangely enough. So it was like a set – apparently the same photographer had taken all of these dozen or so pictures. And so I couldn't see what the edge of it would look like. But there weren't any windows or any apertures or anything like that. And there was just this one spot that I could see that had these markings. So that's I went for. And that's what I did. No, there weren't any kind of rivets in there or any kind of lines. It was just like – it was strange. It looked like it was all one piece of metallic – it was metallic. But I didn't notice any sun glistening off of it or anything. It was just – because it was winter like there, and it didn't seem to be a particularly bright day. But it just looked kind of like – I know what that is, you know, I know what that is.

SG: What do you think it is?

DS: I believe – this was a UFO. I mean, there wasn't any doubt about that. I didn't see any life forms, and I didn't get the sense that it was one of theirs, you know. That they of us. So I come out of the place, I just smiled at them, and I started to go over to pick up my briefcase. And the guy at the desk, at the table – a little table – was there. And he looked at me and said, "Mr. Sheehan, what have you got there?" The pad. So I went, "Well, it's just a yellow pad." And so he said, "Let me see that." So took it and handed it to him, and just was staying completely cool. I just handled it right to him just like that. And he looked at least through the yellow pages – flip, flip, flip through all the yellow pages like that and he never looked at the cardboard backing. And hands it back to me. So I take it, stick it under my arm, I pick up my briefcase and I just walked right out, you know. And so

SG: [Can't make out all of Steve's question] ... have copies of those ...

DS: I've thought about this as a constitutional scholar and a practicing constitutional lawyer now for thirty years, and having worked on some fairly interesting cases – from the Pentagon Papers case to the, ultimately the Iran Contra case. I was chief counsel on the civil case against the off the shelf enterprise of Richard Secord and Albert Hakim, the people who were working with Lt. Colonel Oliver North. So I've done a great deal of analysis of those constitutional analysis of this, and it's been – I'm completely confident that this is a violation of the Neutrality Act. The Neutrality Act is a federal statute under Title 18 of the United States code that prohibits private citizens from engaging in any type of war-like activities against any other non-United States entity without authorization from Congress. And it's perfectly clear to me, based upon the analysis I've done of previously classified documents, that the intelligence committees, the Select Committee on Intelligence of the House and Senate do not know about this. That there have been presidents of the United States that don't know about this. I talked with Laurence Rockefeller once about this. Laurence Rockefeller had a direct meeting with President Clinton and asked him about this. And he told me that Clinton didn't know about this. He was convinced he didn't know about this. I mean, not that Clinton isn't good; Clinton's good at it. If he's trying to tell you he doesn't know, and he does, you might not get it. But the fact is that he was convinced that President Clinton didn't know about this. And based upon that, I'm very confident in saying that this is an unconstitutional activity that's going on here. That the chain of command, the military chain of command has been broken on this. The constitutional chain of command has been broken on this. The agreements to set up the intelligence committees now that have followed after the Watergate burglary and the Nixon impeachment hearings and stuff, it's perfectly clear that they've broken the chain of command on this. So that an action would lie under the United States Neutrality Act. But the difficulty is that that's a federal criminal statute. And therefore, the Justice Department would have to bring it. But, there is a way of getting at this. Under the Federal Racketeer Influenced and Corrupt Organization Act, the RICO statute – one of the predicate acts, or one of the criminal actions that would trigger civil jurisdiction is a violation of the Neutrality Act. And I believe, based upon the evidence that I've seen – previously classified evidence – of having talked with people who are now talking about this – that, in fact, there are probably eight or ten major federal statutes that have been violated, at least a half of dozen of which are predicate acts of the Federal Racketeer Influenced and Corrupt Organization Act. So that there would be a civil litigation that would lie there. I believe that there is probable cause to believe that a civil cause of action would lie. Questions of standing are important. Who among the citizenry would have standing to bring such an action. That's an important jurisdictional question. I believe that it is extremely important, however, that these questions be asked and answered. I believe that there's an important need for we, as citizens of the United States, to start to gather together to bring forth the type of funding that would be necessary from a civilian point of view to conduct a professional private investigation. I am completely convinced, predicated upon my previous investigations involving the Pentagon Papers case, the Karen Silkwood case – I was chief counsel in the Karen Silkwood case out in Oklahoma – and I have conducted half a dozen major criminal investigations as a sort of public interest attorney general that have been successful – that we could do this. That we, as citizens, could, in fact, discover what's been going on here and what type of criminal statutes have been violated and could take up action. Now, given the kind of appointments that are being made to the

I went back to Jesuit headquarters and went right straight to Fr. Davis's office. I said, "Bill," I said, "take a look at this, man." And I opened the thing up and took it out and showed it to him. He said, "What's that?" And so I explained it to him; exactly what I had seen. So there's contemporaneous confirmation that this happened, you know. And I don't know whether he made any kind of entry or anything in a log or diary, but there may be something at the Jesuit headquarters among the records that this was there. I don't know how – what he did on that. But I showed it to him, and peculiarly enough, I never called Marsha Smith back about it. I just took this thing, I said, you know, this is all in the course of my getting ready to be prepared to go do the thing at SETI. And so I prepared my entire presentation for the people at SETI. Didn't tell people at SETI about it. I mean – it's strange. I presented an entire thing on the theological implications, but I did so with a much higher level of confidence that they were going to find something and that they'd better, you know, be focused on what they were doing. And they specifically told **[split second glitch in tape]** me, yeah, there wasn't any doubt about that. This was the United States Air Force; a United States Air Force group of guys. I'd seen ... I saw ... there was the two guys in the photograph of the measuring, and that there was like another three guys at least in the photograph that were taking other photographs. I didn't see anybody that looked like ...

[Glitch in tape; there are a few words lost here.]

Yes, there was a final incidence that Marsha Smith called me some few weeks later. Told me that the people were really happy at the jet propulsion laboratory, the SETI people. And she showed me a copy of the. I actually have copies that she gave me copies of each of them. And one of them was on the probability of extraterrestrial existence of extraterrestrial intelligence, and the second one was an analysis of the UFO phenomenon. And so I review those. In the first one, I mean, I was quite struck by this thing, that it opened right up with saying the Congressional Research Service, having reviewed unclassified and classified data, has come to the conclusion that there are at least from two to six other highly, technologically-developed intelligent civilizations just inside our galaxy. Just fact; just like that. And it is providing that information to the president. And with regard to the UFO items, they pointed out that there were like seven or eight different shapes of these things that were classically reported, and went through the stuff and saying that there was like 20% of these things that – even in the UFO major investigations by Project Blue Book with the Air Force and reviewed the history of these investigations – but that there were like 20% of these that they were unable to explain in an other way. And what I have to point out, it wasn't that they just couldn't explain them in some other way, it was clear that these were credible, reliable accounts of vehicles that they concluded were not ours, and did not belong to the Soviet Union, and appeared to have technological capabilities that made it absolutely clear that they were of no known origin on this planet. But wouldn't go on to the next step. Did not go on to the next step by saying, "Ergo, they must be from some other planet." They didn't say that in the report. It was really interesting how they did that. But just reported the findings of the Air Force and the other intelligence ... said that these did not belong to us, and that they did not belong to the Soviet Union, and that they had technological capabilities that were vastly beyond anything anyone knew about on this planet. And that's how they put it. So I ended up getting a copy of those. So I have each of those two copies, plus my little back of my yellow pad that I had there. And

Federal Judicial branch right now by the new Bush administration, I wouldn't be terribly optimistic that they would exercise their constitutional duty in a legitimate way. I believe that they are being selected by the federal society and Senator Hatch, who chairs the Senate Judiciary Committee that has oversight on these appointments ... Selection process is very much geared so that, I believe in the very near future, we're going to have probably some sixty additional federal judges who would never in the world enforce the constitution. But the constitutional question is the legitimate one. And I am absolutely, completely convinced that 99% of all of the legitimate constitutional scholars in our country would agree with me that this is a violation of the United States constitution and that a civil cause of action should lie to remedy this problem.

SG: [???] the assertion that something this simply cannot be tested first.

DS: That is absolutely, perfectly clear to me. That's not true. That it's clear that it can be kept secret. I mean, I've had to do some substantial digging to uncover certain secrets that the government has been able to keep to this day. People don't know these things. For example, the Karen Silkwood facility; the Kerr McGee Nuclear facility in Oklahoma – that they were smuggling bomb-grade plutonium; 98% pure bomb-grade plutonium was being smuggled out of that private nuclear facility and brought to Israel and Iran and South Africa and Brazil. And the fact of the matter is that that information was known to the Central Intelligence Agency that was facilitating the Israeli desk of the Operations Directors of the Central Intelligence Agency. And I personally communicated this information to Peter D.H. Stockton, who was the chief investigator for the House Commerce Committee, Subcommittee on Energy and Environment. He personally communicated to Congressman John Dingle. John Dingle confronted the then Director of the Central Intelligence Agency, Stansfield Turner, and demand that they conduct this investigation. And they conducted an investigation and confirmed that it was true. And they still never told the American public about it. Absolute, total abrogation of the Nuclear Non-Proliferation Treaty that the United States is a major signatory to. And to this day, we are sitting listening to this thing and you didn't know that. And the New York Times doesn't know that. And others don't know that. The New York Times wouldn't print it, even if they knew it. There is a follow up to that – there's a second part to that question. Could the government possibly keep this secret? A lot of people think about, well, you've got, you know, with guys like Bob Woodward around at the Washington Post and the New York Times investigative journalist like Sy Hersh, and all these – wouldn't they be able to dig this stuff up? Well, number one, it doesn't necessarily follow that they would get this information. But number two, very importantly, if they got it, that they wouldn't print it. You're talking to somebody who was the legal counsel to the New York Times for the Pentagon Papers case. I was the one that actually was the very first one who said, "Let's print these papers." I sat in that meeting with James Goodale, and Floyd Abrams, and Gene Scheiman on that morning in June of 1971, and said "Print these papers right now." So they were all shilly shallying around saying, "Well, maybe we shouldn't print these things." And the fact is that we were also the ones that prepared the affidavits from Teddy Sorenson that, in fact, withdrew from being the Central Intelligence Agency Director, because he, in fact, had provided a sworn affidavit to Judge Murry Gurfein – who was the federal judge in the Pentagon Papers case – testifying that, in fact, the New York Times regularly suppressed information that they found out about, that was of a classified nature and they refused to print it. So you're getting first-hand, direct eyewitness, personal testimony that most positively,

that the New York Times and the Washington Post and others will not print things like this. So even if it made its way into the hands of these professional investigative journalists, it doesn't mean the American people would find out about it. So the answer is, unequivocally, that I'm absolutely certain that they could retain this type of a secret. But in a certain sense, they haven't. Even with all their efforts – I mean, because thousands of people of have seen these.

SG: Let's get back to what you mentioned the other day ...

DS: That's a third point. That the Central Intelligence Agency and the National Security Agency has individuals actually placed inside major national news media in the United States. In fact, I have seen a classified document that says that this is now, as of 1990 when I saw that document, now eleven years ago, that they had 43 separate full-time, full paid Central Intelligence Agency and NSA, Military Intelligence officers placed on the payroll of the top ten major news media in the United States, whose job it was to keep any national security information from being published. So I know that's true, and I've talked to them right across the table. And they've acknowledged to me that that's what they are and that's what they do. Because they spiked one of the stories we had during the Iran Contra thing. That Time Magazine had a guy who was a national security reporter for Time Magazine in Washington DC, was a full-time Central Intelligence Agency operative.

SG: So the sense that we have a true free press is a myth?

DS: It's an absolute myth. It's a self-constructed myth. Keith Schneider **[Glitch in tape, then a short phrase "is a full-time Central Intelligence Agency operative." – Then the tape resumes, sort of gong back to Steve's question again.]**

SG: So the sense that we have a true free press is a myth?

DS: It's an absolute myth. It's a self-constructed myth. Keith Schneider, reporter for the New York Times during the Iran Contra events – I gave them absolute data that Warren Hoge, the International Desk man, we gave – through Keith Schneider – gave all the data to them. The tail numbers on the airplanes, the drug smuggling operations; everything that they were doing. Keith Schneider told me personally – stood right out on First St. right next to the Supreme Court – he said, "You know, Dan. We at the New York Times have very good sources inside the intelligence community." And I said, "Yes, Keith. You're talking to the guy who was general counsel. I was one of the legal counsel for the New York Times. I know perfectly well about that. We're the ones who got the affidavits from Teddy Sorenson. I know that." He said, "Well, frankly, our sources won't confirm your story. The intelligence community. And if they won't confirm your story, the New York Times won't print it." That's the type of free press you've got in the United States right now.

SG: Thank you very much.